

Court No. - 2

Case :- WRIT - C No. - 3339 of 2025

Petitioner :- Vijay Laxmi Yadav

Respondent :- District Magistrate Lucknow And 2 Others

Counsel for Petitioner :- Manoj Kumar Dubey, Roopani Mishra

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Rajan Roy, J.

Hon'ble Om Prakash Shukla, J.

Heard.

Considering the order proposed to be passed, issuance of notice to the opp. party No. 3.

The petitioner claims to be a franchisee of some salon in the name and style 'M/s Javed Habib Glamour World Hair and Beauty Solutions Pvt. Ltd.' She further claims to be a tenant of the premises of which the opp. party No. 3 is the owner, however, no lease agreement has been annexed with the writ petition as proof of tenancy.

Learned counsel for the Electricity Corporation says that the electricity connection was in the name of the earlier tenant. On an application by opp. party No. 3/owner of the premises the connection was disconnected. The petitioner could not produce any lease agreement or rent receipt to establish his tenancy and possession of the premises in question, therefore, the official opp. parties have not taken cognizance of her request. She may approach the authorities concerned apprising them about her tenancy and possession in terms of relevant provisions of the U.P. Electricity Supply Code 2005 and the Electricity Act 2003, but in the facts of this case we do not find it a fit case for interference.

If any such application is filed alongwith requisite proof, such as lease agreement, rent receipt or the T.D.S. which may have been deducted, as it is said that the petitioner pays rent of more than Rs. 1 lac per month to the opp. party No. 3, alongwith an indemnity bond and if the possession of the petitioner in the premises in question is proved, then even if the owner does not give consent, but after hearing him the Electricity Corporation can consider the request of the petitioner for grant of electricity connection in her name, if there is no legal impediment.

The decision in this regard shall be taken within 3 weeks of submission of the said application.

The opp. party No. 3 be also heard before granting electricity connection to the petitioner.

With the above observations/directions this writ petition is **disposed of**.

(Om Prakash Shukla, J.) (Rajan Roy, J.)

Order Date :- 8.4.2025

A.Nigam